

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 24-16

SAMSUNG ELECTRONICS

AMERICA, INC.,

COMPLAINANT,

v.

COSCO SHIPPING LINES CO., LTD,

RESPONDENT.

**RESPONSE TO RESPONDENT'S MOTION FOR
ENLARGEMENT OF TIME TO
COMPLETE DOCUMENT PRODUCTION**

Complainant Samsung Electronics America, Inc. (“SEA”), by and through its undersigned counsel, respectfully submits this brief Response to Respondent COSCO Shipping Lines Co., Ltd.’s (“COSCO”) Motion for Enlargement of Time to Complete Document Production (Dkt. 61, the “Motion”), in regard to footnote 1 of COSCO’s Motion.

COSCO’s Motion correctly advises the Presiding Officer that SEA takes no position on COSCO’s enlargement of time request. SEA’s position has not changed since yesterday.

But upon receipt of the Motion and review of footnote 1, SEA notes that COSCO takes the curious position that any extension of the August 14, 2025, final document production deadline would be unilateral in COSCO’s favor. There is no other joint deadline in this case that is unilaterally applied, and doing so now, should the Presiding Officer grant COSCO’s Motion as crafted, would be inequitable based on the following considerations.

In yesterday’s production, SEA produced nearly 350,000 pages of documents (SEA_COSCO-0000001 - SEA_COSCO-0347363) to COSCO. COSCO advised in its Motion that it has produced approximately 6,000 pages of documents. SEA has received a renewed password this morning to access the production as the previous link had expired. SEA is working diligently to meet the production of documents deadline on August 14, 2025, after settlement negotiations did not result in resolution of the dispute. If SEA rushes to review and release additional documents in response to COSCO’s document requests by the current August 14 deadline, and COSCO receives a unilateral extension of time to complete its production, COSCO will have a full month of additional time to review discovery and prepare for depositions while SEA waits for the majority of documents necessary for the prosecution of this case. Such a unilateral extension would prejudice SEA by perversely benefiting the party that has advised it is unable to meet the deadline

to produce documents to satisfy its discovery obligations. This is simply not the purpose of joint deadlines in cases before the Commission.

SEA submits this clarification, so the record is clear that it does not agree with COSCO's interpretation of FMC practice as articulated in footnote 1 of the Motion.

Respectfully Submitted,

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CERTIFICATE OF SERVICE

The undersigned hereby certifies that on the execution date which appears below, the undersigned served the attached document on counsel at the following email addresses:

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